

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aaron Cole	Team: Squad #01	CCRB Case #: 201609882	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/30/2016 11:47 AM	Location of Incident: Third Avenue and President Street	18 Mo. SOL 5/30/2018	Precinct: 78		
Date/Time CV Reported Wed, 11/30/2016 12:03 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/30/2016 12:03 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Jorgensen	26407	950649	078 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Brenda Maldonado	21851	928683	078 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Jorgensen	Discourtesy: Police Officer Daniel Jorgensen gestured discourteously toward § 87(2)(b)	A . Unsubstantiated
B . POM Daniel Jorgensen	Discourtesy: Police Officer Daniel Jorgensen gestured discourteously toward § 87(2)(b)	B . Unsubstantiated
C . POM Daniel Jorgensen	Abuse: Police Officer Daniel Jorgensen threatened to issue a summons to § 87(2)(b)	C . Exonerated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via phone on November 30, 2016. At approximately 11:47 A.M. on November 30, 2016, in the vicinity of Third Avenue and President Street in Brooklyn, § 87(2)(b) was driving a truck and speaking on his cell phone as he drove. As § 87(2)(b) drove his truck southbound on Third Avenue he was stopped at President Street by PO Daniel Jorgensen and PO Brenda Maldonado of the 78th Precinct. PO Jorgensen and PO Maldonado approached § 87(2)(b)'s vehicle. PO Jorgensen requested § 87(2)(b)'s license and registration, which § 87(2)(b) provided, allegedly including his armed forces EZ pay card. § 87(2)(b) informed PO Jorgensen that he was a military veteran. PO Jorgensen walked back to his marked RMP, then returned to § 87(2)(b)'s driver's side window approximately five minutes later, and tossed a summons for driving while talking on a cell phone through the window, so that it landed in § 87(2)(b)'s lap (**Allegation A**).

§ 87(2)(b) responded that for PO Jorgensen to give a summons to a military veteran was “un-American,” and that PO Jorgensen should be ashamed of himself. PO Jorgensen turned his back to § 87(2)(b) raised his right arm over his shoulder and extended his middle finger (**Allegation B**.) § 87(2)(b) was able to obtain PO Jorgensen's name from the summons issued to him.

PO Jorgensen and PO Maldonado drove away from the scene of the incident and headed southbound on Third Avenue. § 87(2)(b) followed the officers in his vehicle by driving in a bike lane in order to surpass the traffic between himself and the officers. Upon catching up with the officers, he activated the video recording device on his cell phone and aimed the cell phone camera at the officers, as all parties continued to drive. § 87(2)(b) called out of the window of his vehicle to the officers that PO Jorgensen had given him the middle finger, to which PO Jorgensen allegedly responded, “That's how I salute you guys.” § 87(2)(b) informed PO Jorgensen that he was being recorded, and PO Jorgensen allegedly made a comment to the effect of, “Do you want to get in more trouble?” which § 87(2)(b) interpreted as a threat to arrest him or issue an additional summons (**Allegation C**.) § 87(2)(b) was not arrested nor was he issued any additional summons.

§ 87(2)(b) captured part of the incident on his cell phone and provided it to the investigation.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered and rejected mediation during his interview at the CCRB § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s third CCRB complaint. § 87(2)(b)

§ 87(2)(b)

- PO Jorgensen has been the subject of five CCRB complaints and nine FADO allegations in his five year tenure with the NYPD. Three of these complaints were mediated, and none of the allegations were substantiated (Board Review 03). None of CCRB complaints included allegations of a threat of summons, threat of arrest, or discourtesy.

Potential Issues

- Excluding the aforementioned video footage provided by § 87(2)(b) the investigation was unable to obtain video footage of the incident. The CCRB field team canvassed the intersection of President Street and Third Avenue on December 21, 2016, and found that no exterior cameras existed in the area besides those associated with the Super 8 Brooklyn/Park Slope Hotel located at 267 Third Avenue. A subpoena for video footage was delivered to the hotel that same day, and on December 22, 2016, the undersigned spoke with § 87(2)(b) a representative of the Super 8 Brooklyn/Park Slope Hotel, who stated that there was no video footage available of Third Avenue, only of a parking lot on President Street, removed from where the incident occurred.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A -Discourtesy: Police Officer Daniel Jorgensen gestured discourteously toward

§ 87(2)(b)

§ 87(2)(b) testified (Board Review 05) that PO Jorgensen returned to § 87(2)(b)'s driver's side window and tossed a summons through the window, so that it landed in § 87(2)(b)'s lap. PO Jorgensen did not flick his wrist as he tossed the summons, but rather lobbed it through the window, when he could have simply placed it in § 87(2)(b)'s hand, as § 87(2)(b)'s left arm was resting in plain view on the window sill.

PO Maldonado testified (Board Review 06) that when PO Jorgensen returned to § 87(2)(b)'s driver's side window to deliver his summons, she accompanied him, standing approximately one foot to his left, as she had when the officers first approached the vehicle. PO Jorgensen placed the summons directly into § 87(2)(b)'s hand and began to explain the procedure by which § 87(2)(b) could contest his summons in a normal volume and tone of voice. PO Jorgensen did not flick his wrist or toss the summons into § 87(2)(b)'s vehicle. § 87(2)(b) responded by raising his voice and using profanity, specifically saying, "You're giving me a fucking summons?" PO Jorgensen explained to § 87(2)(b) that he was not allowed to use his cell phone while operating a vehicle, and § 87(2)(b) continued to curse at PO Jorgensen, at which point PO Jorgensen and PO Maldonado walked back towards their RMP.

PO Jorgensen testified (Board Review 07) that when he returned to § 87(2)(b)'s driver's side window to deliver the summons, he attempted to hand § 87(2)(b) the summons with § 87(2)(b)'s license and registration pinched together. § 87(2)(b) initially did not want to accept the summons, and threw his hands in the air in exasperation. However, he then took these documents directly from PO Jorgensen's hand—PO Jorgensen did not throw or flick the summons into § 87(2)(b)'s vehicle. § 87(2)(b) waved his hands in the air, in a gesture of exasperation, and stated, "You gave me a summons? That's fucked up! I'm a veteran, that's un-American." PO Jorgensen informed § 87(2)(b) that directions for answering the summons were written on the back, encouraged him to drive safely, and proceeded to walk away from the vehicle, back towards his RMP.

There is no video footage associated with this portion of the incident.

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B -Discourtesy: Police Officer Daniel Jorgensen gestured discourteously toward

§ 87(2)(b)

§ 87(2)(b) testified that immediately after PO Jorgensen delivered his summons, § 87(2)(b) said as he laughed, "You're really going to give a summons to a veteran? How un-American. You should be ashamed of yourself," which he intended as a joke, particularly because he had already received the summons and he realized it was too late for him to prevent PO Jorgensen from giving it to him. PO Jorgensen turned his back to § 87(2)(b) and walked towards his RMP. As he did so, with his back still turned to § 87(2)(b) and without turning his head to make eye contact, he raised his right arm over his shoulder and extended his middle finger. PO Jorgensen's middle finger remained in the air for the approximately two seconds.

§ 87(2)(b) argued that PO Jorgensen confirmed that he had made the alleged discourteous gesture during an encounter shortly after the summons was issued. After PO Jorgensen drove

away from the scene, § 87(2)(b) followed PO Jorgensen's RMP down Third Avenue, shifted into a bike lane, accessed the video camera on his cell phone, pressed the record button, and pulled up alongside the passenger side of PO Jorgensen's RMP. § 87(2)(b) pointed his cell-phone camera in the direction of PO Jorgensen and his partner and asked, "That's how you guys treat civilians? You give them the middle finger?" PO Maldonado replied, "He didn't give you the middle finger." PO Jorgensen responded, "No, that's how I salute you guys." § 87(2)(b) held up his phone for PO Jorgensen to see, and said, "I got it all right here."

PO Maldonado testified that after PO Jorgensen delivered § 87(2)(b) his summons, § 87(2)(b) began to yell and curse at PO Jorgensen. In response, PO Jorgensen and PO Maldonado began to walk back towards their RMP, with their bodies turned at a slight angle to continue watching § 87(2)(b) as they walked away from his vehicle. § 87(2)(b) yelled that he was a veteran and that to issue a summons was "un-American." § 87(2)(b) asked PO Jorgensen, "I'm talking to you, what are you doing? Get the fuck back over here!" In response, PO Jorgensen told § 87(2)(b) to drive carefully, raised his left hand to his left temple, and saluted § 87(2)(b). § 87(2)(b) did not say or do anything that indicated an overt reaction to PO Jorgensen's salute. PO Jorgensen did not raise his middle finger when he was walking away from § 87(2)(b) or while he was saluting § 87(2)(b). PO Jorgensen did not raise his middle finger to § 87(2)(b) at any time during the entire encounter. PO Jorgensen did not make any profane gesture to § 87(2)(b) during the entire encounter, and PO Jorgensen did not make any other gestures towards § 87(2)(b) besides the saluting him one time.

PO Maldonado and PO Jorgensen reentered their RMP and PO Maldonado drove south on Third Avenue. PO Maldonado noticed in her rearview mirror that § 87(2)(b)'s vehicle was driving in the bike lane to the right of her marked RMP and approaching rapidly. § 87(2)(b) continued to drive in the bike lane and pulled up to the right of PO Maldonado's RMP. PO Jorgensen rolled down his window. § 87(2)(b) accused PO Jorgensen of having given him the middle finger, and said specifically, "Is this normal procedure, is this what the fuck you people do now? You flip people off when they're talking to you?" § 87(2)(b)'s hand was positioned so that it appeared that he was holding a small object at chest level, which concerned PO Maldonado, because she did not know what the object was, although she believed it may have been a recording device. PO Maldonado did not say anything to § 87(2)(b) at this time or at any other time during the incident. PO Maldonado did not recall if PO Jorgensen told § 87(2)(b) that he had saluted him. PO Maldonado did not recall if PO Jorgensen said to § 87(2)(b) "That's how I salute you guys."

PO Jorgensen testified that after he delivered § 87(2)(b) his summons, he began to walk towards his RMP. As he did so, PO Jorgensen did not turn his back fully to § 87(2)(b) but turned his head to watch § 87(2)(b) over his left shoulder as he walked. § 87(2)(b) hung his torso out of his driver's side window and continued to speak to PO Jorgensen, asking him if he knew a detective in the 78th Precinct named "Corgliano." PO Jorgensen responded that he did not know

said detective, and § 87(2)(b) responded, “Well you fucking should.” PO Jorgensen responded that it did not make a difference if that officer worked in the precinct, and encouraged § 87(2)(b) to drive safely once again. § 87(2)(b) continued to yell expletives at PO Jorgensen, including, “I’m still fucking talking to you... you’re an asshole... you’re fucked up.” As PO Jorgensen reached the rear of § 87(2)(b)’s vehicle, he put his right hand to his right temple and saluted § 87(2)(b) with his body still slightly slanted, not facing § 87(2)(b) directly. PO Jorgensen did not present his middle finger to § 87(2)(b) at that time, or at any other time during the entire incident.

PO Jorgensen and PO Maldonado resumed patrol. As they approached the Whole Foods on Third Street and Third Avenue, he noticed in his side view mirror that § 87(2)(b) was accelerating behind him, passing three or four vehicles stopped in traffic by driving in a single lane bike lane. As § 87(2)(b)’s vehicle drove alongside PO Jorgensen’s, PO Maldonado informed PO Jorgensen that § 87(2)(b) appeared to be holding a cell phone and recording the officers, although PO Jorgensen was unable to see this himself.

§ 87(2)(b) asked PO Jorgensen if “officers just flip the bird” at civilians. PO Jorgensen told § 87(2)(b) that he had not given § 87(2)(b) the middle finger, and that he had saluted him. § 87(2)(b) disputed that this had occurred, but spoke in a less agitated voice than he had at the initial vehicle stop.

The relevant memo book entries that PO Jorgensen prepared regarding the incident (Board Review 08) § 87(2)(g) read as follows:

“Upon issue summons motorist stated he is a veteran and giving ticket is “un-American.” Further shouted “You’re fucked up, Hey, you’re an asshole.” I was walking back to RMP as he kept shouting Hey! Hey! I turned around and gave wave salute and returned to RMP. Approx 10 mins after stop @ 3rd Ave and 6th Street motorist pulled along side RMP in bike lane and asked if the police just flip the bird these days.” I explained it was a salute and wave and gave him my name upon request and informed him that my name appears on summons with info motorist was recording and opp in bike lane after which I asked him to exit bike lane upon traffic begins to flow motorist attempted to cut off RMP creating a hazardous condition.”

The video footage that § 87(2)(b) provided begins with twenty seconds of the camera appearing to focus on the speedometer of § 87(2)(b)’s car. At approximately the twenty second mark, the camera shifts and reveals the side of a marked RMP sedan, although it is not possible to see the faces of the individuals inside of it. A car horn honks, and § 87(2)(b) states, “I ask him a question and he flips me the middle finger? That’s what cops do these days?... He flipped me the middle finger I got it right here, that’s what you guys do these days?... I just want to ask you is that what you do?...What’s your name?” An officer clearly states in response: “Jorgensen, it’s at the bottom of the summons.” § 87(2)(b) responds, “Along with the middle finger?” The officer

issues a response that is inaudible, to which § 87(2)(b) says, “A salute?” And the officer confirms, “Yup.” § 87(2)(b) then says, “Real patriotic, you flip the middle finger to a veteran. You’re on video, watch.” The officer seems to respond, but the response is inaudible. The camera then turns away from the RMP and appears to point at § 87(2)(b)’s speedometer and steering wheel, as § 87(2)(b) says, “I got you bro.”

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[illegible]

§ 87(2)(b) testified that as he drove in an illegal bike lane alongside PO Jorgensen's RMP, held up his phone for PO Jorgensen to see, and said, "I got it all right here." PO Jorgensen made a comment to § 87(2)(b) that he interpreted as a threat. § 87(2)(b) could not recall exactly what this comment was, but believed it was similar to "Do you want to get into more trouble?"

PO Maldonado testified that after § 87(2)(b) accused PO Jorgensen of giving him the middle finger, PO Jorgensen told § 87(2)(b) that when the light turned green, he should get out of the bike lane by crossing in front of the RMP, and to drive away in a legal lane. PO Maldonado confirmed during her CCRB interview that driving in a bike lane is an offense which § 87(2)(b) could have been issued a summons for. When the light turned green, § 87(2)(b) made a left-lane shift out of the bike lane, in front of PO Maldonado's RMP, and sped away from the officers.

PO Jorgensen testified that as § 87(2)(b) drove alongside his marked RMP in a bike lane, § 87(2)(b) was guilty of two traffic violations for which he could be issued a summons for: driving in a bike lane, and using a cell phone while operating a vehicle. PO Jorgensen asked § 87(2)(b) to please leave the bike lane, once traffic allowed him to. PO Jorgensen did not ask § 87(2)(b) "do you want to get into more trouble," did not tell § 87(2)(b) that he could be arrested for being in the bike lane, and did not tell § 87(2)(b) that he could be arrested at any time during the entire encounter. Rather, PO Jorgensen used his discretion to not issue § 87(2)(b) an additional summons in order to deescalate the confrontation.

§ 87(2)(b)'s video footage § 87(2)(g) While PO Jorgensen's muffled voice can be heard issuing a response to § 87(2)(b)'s accusations, the response is inaudible, except for a moment when PO Jorgensen states his name as "Jorgensen, it's written on the bottom of the summons."

New York State Vehicle Traffic Law 1225-D (Board Review 09) specifies that "... no person shall operate a motor vehicle while using any portable electronic device while such vehicle is in motion."

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **Allegation C** be closed as **exonerated**.

Squad: 1

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date